

Reasonable adjustment

Human Resources Policy G03 (QH-POL-210)

Purpose

To assist employees requiring support to meet the genuine occupational requirements of their role by applying principles of reasonable adjustment.

This includes employees participating in a workplace rehabilitation and return to work program, who may require temporary reasonable adjustment to support recovery and reach their full scope of work, and employees with permanent pre-existing or emerging work capacity restriction related to a health condition/s or disability, who may require permanent/ongoing reasonable adjustment.

In relation to reasonable adjustments as part of a recruitment process, refer to *Recruitment and selection HR Policy B1*.

Application

- This policy applies to all Queensland Health (the department and Hospital and Health Services) employees.
- This policy does not apply to Queensland Ambulance Service employees. Queensland Ambulance Service employees are to refer to their local policy/procedure.

Policy

1 Reasonable adjustment

Reasonable adjustment refers to modifications made to a job, workplace, or work practices to ensure employees with disabilities or health conditions can perform their roles effectively and safely, whilst not imposing unjustifiable hardship on the employer. These adjustments aim to create equal and equitable opportunities for all employees, including those returning to work after illness or injury.

Adjustments are tailored to the specific needs of the employee and their condition. These can include changes to the physical workspace, work arrangements (e.g. flexible hours), modifications to work methods/processes/work tasks, or provision of assistive technology. Refer to attachment 1 for examples.

Managers are responsible for ensuring work environments and work, do not unreasonably prevent employment for people. Managers must also ensure reasonable adjustment solutions are fair and equitable to all employees. Reasonable adjustments enable employees to safely complete the genuine occupational requirements of their role, without introducing foreseeable risk; thereby contributing to a more inclusive and supportive work environment, promoting the health, safety, and wellbeing of all employees.

Queensland Health is committed to workplace inclusion, productivity, staff attraction and retention and ensuring individual health and safety needs are met in the workplace. Reasonable adjustments provide an environment where people feel physically, psychologically and culturally safe and supported to meet their full workplace potential, enabling Queensland Health to recruit and/or retain valuable knowledge, skills and experience that may have otherwise been excluded or lost.

When applying this policy, proper consideration must be given to the *Managing the risk of psychosocial hazards at work Code of Practice 2022*, to ensure the process of providing reasonable adjustments in the workplace, identifies and manages psychosocial hazards and risks.

1.1 Temporary reasonable adjustment

Employees with temporary incapacity or reduced capacity, arising from injury or illness, may require a period of workplace support, in the form of temporary reasonable adjustments, to continue work during their recovery.

Where workplace support and temporary reasonable adjustment is required as part of an agreed workplace rehabilitation program, processes will be followed as detailed in the Workplace Rehabilitation Standard and may be coordinated by an appropriately qualified Rehabilitation and Return to Work Coordinator. This will include the requirement for current medical advice and review with relevant stakeholders at agreed intervals. The timeframe associated with a temporary reasonable adjustment will be dependent on each employee's presenting injury/illness and associated circumstances but is expected to align with the required duration of suitable duties, provided as part of workplace rehabilitation.

1.1.1 Workplace rehabilitation cases and temporary reasonable adjustment

Workplace rehabilitation support is available for employees:

- With work-related injury/illness and/or an accepted worker's compensation claim (WorkCover may fund workplace adjustment/s related to the compensable injury/illness).
- With any other injury/illness, including employees:
 - who submit an income protection claim (income protection insurer may consider funding reasonable adjustment during the employee's return to work phase)
 - who have an injury/illness impacting their current ability to perform their role, with no claim or entitlement to compensation (health management case).

Rehabilitation plans and suitable duties programs will be considered temporary in all cases where the employee's medical advice indicates further recovery is anticipated and rehabilitation towards the pre-injury work, or other approved work goal is still viable. Further information is available in the Queensland Health Workplace Rehabilitation Standard.

Temporary reasonable adjustments may also be managed locally and require oversight and/or input from relevant functions. Where a line manager or delegate believes an employee may have an illness or injury affecting their work capacity or wellbeing, based on workplace observations, discussions, absence or performance, they may initiate the appropriate support process. If the concern relates to a potential medical condition, the line manager or

delegate will follow health-related procedures. If the concern is primarily employment or performance related, the process may be facilitated by the relevant HR function.

1.2 Permanent reasonable adjustment

The requirement for permanent reasonable adjustment may be identified at any stage of the employee lifecycle.

The requirement for permanent reasonable adjustment may be identified during/following a period of temporary reasonable adjustment for an injury or illness, where:

- The employee's progress towards the goal of returning to pre-injury duties, through rehabilitation and return to work support, has been limited or has plateaued.
- The employee has reached maximum medical improvement without achieving a full return to pre-injury duties or a mutually agreed alternative return to work goal has been achieved, for example hours/duties permanently modified through agreement by all parties.
- A safe and durable return to work cannot be achieved, for example, significant concerns exist regarding the employee's safety at work, risk to others or patients.
- Clear medical advice is provided indicating return to pre-injury role and duties is not medically recommended. This may be via treating practitioner advice and/or information obtained in an independent medical examination.

Alternatively, the requirement for permanent reasonable adjustment may relate to a pre-existing health condition or disability that a person discloses to their line manager/hiring manager through the recruitment and selection process or at any time after commencement of employment. A requirement for reasonable adjustment may also arise from natural degeneration of health or an existing condition that had previously not impaired the person's work capacity.

Permanent reasonable adjustments can be considered by the line manager, in consultation with relevant support team/s, where information provided by the employee indicates permanent/ongoing work capacity adjustments are required. Consideration will include:

- Appropriate endorsement that the proposed adjustment is safe for the employee requiring adjustment and others in the workplace.
- Mutual agreement that the requested adjustment is reasonable, operationally practicable and does not introduce uncontrolled workplace risk.
- Determination that the adjustment does not incur unjustifiable hardship.

The manager of the relevant work area is to work with the local HR unit to document and retain details of the permanent reasonable adjustment including completing a permanent employment movement form, where applicable.

2 Requirement to provide reasonable adjustment

The employer should, where it is necessary and reasonably practicable to do so, make modifications and adjustments to the workplace or the role to meet the individual needs of an employee.

Queensland Health managers are required to facilitate appropriate and reasonable changes to organisational practices to support the employment of an individual, unless this imposes unjustifiable hardship for the workplace.

Unjustifiable hardship is based on an assessment of what is fair and reasonable considering all the circumstances. The question of whether an adjustment is unreasonable or would cause 'unjustifiable hardship' is tested against the whole organisation, not a division or unit within the organisation. The onus is on Queensland Health, as the employer, to prove an adjustment is unreasonable, not on the person to prove that it is reasonable.

Failure to provide reasonable adjustment may constitute unlawful discrimination against the person. Further, claims of unjustifiable hardship may be challenged in the Queensland Human Rights Commission.

3 Reasonable adjustment assessment

Any employee has the right to request a reasonable adjustment and employees should provide timely notification to their line manager of any requirement for a reasonable adjustment. Reasonable adjustment may need to be supported by medical or rehabilitation information, where necessary, to either identify required workplace adjustments and/or assess the suitability of proposed adjustments.

When an employee requests a reasonable adjustment or when a manager identifies that one may be needed, the employer should, where reasonably practicable, make modifications and adjustments to the workplace or the role. These adjustments should support the employee to undertake the genuine occupational requirements of their role, without risk to their own health and safety or that of others in the workplace.

Queensland Health acknowledges the right of the person with disability, condition, cultural considerations or neurodivergence to choose how disclosure of information occurs.

It may only be necessary to share information when the ability to meet genuine occupational requirements and or individual safety is at risk and reasonable adjustment is required. Queensland Health holds a duty of care to ensure the health and safety of employees and others in the workplace under the *Work Health and Safety Act 2011*. Seeking information to assist workers to remain safe in the workplace fulfills this obligation.

Upon identification of the need for reasonable adjustment, and with the consent of the employee, an appropriately qualified person may be engaged to determine the needs of the person and offer possible solutions for reasonable adjustment.

The assessment should consider the physical and organisational barriers impacting the person's employment, work performance or factors inhibiting advancement within the organisation.

In providing support, the Public Service Commission has produced a workplace adjustment decision-making table which may be referred to.

4 Obligations and responsibilities

Reasonable adjustment solutions are part of Queensland Health's obligation to provide a safe, accessible and inclusive workplace for all people.

Queensland Health has an obligation under the *Work Health and Safety Act 2011* to provide a healthy and safe work environment. This obligation extends to preventing the recurrence, aggravation, acceleration, exacerbation or deterioration of any existing injury in a person because of the person's work.

Chief executives must ensure reasonable adjustment solutions are fair and equitable, embedding equity, diversity, respect, and inclusion. Promoting access to adjustments fulfills the positive duty requirements of the *Public Sector Act 2022, Chapter 2*.

Line managers should facilitate appropriate and reasonable organisational practices, environment and/or workplace supports. Employees should provide timely notification to their line manager of any reasonable adjustment needs, accessing appropriate leave entitlements, as required. Line managers should engage with their local Workplace Rehabilitation team to facilitate suitable duties and temporary reasonable adjustments and with their local HR unit to consider permanent reasonable adjustments.

5 Cost of reasonable adjustment

The Department of Health/Hospital and Health Services are responsible for reasonable financial costs of the implementation of reasonable adjustment solutions. The relevant financial delegate is responsible for implementing reasonable adjustment solutions, where reasonably practicable.

Examples of costs may include; temporary adjustments to support backfill arrangements (in a rehabilitation and return to work process), modifications to the workplace, work equipment, training, or temporary or ongoing changes to work practices or roles, in a workplace rehabilitation context.

In cases of worker's compensation, income protection or other insurance cover, some costs associated with reasonable adjustment may be covered. Some individuals may also be eligible to access alternate commonwealth government funding (e.g. Job Access, using Work Assist or Employment Assistance Fund).

6 Evidence and determining adjustments

Information or evidence may be required to support an employee's request for a reasonable adjustment. An employee seeking reasonable adjustment is to provide consent for the purpose of collecting personal information about their ability to perform genuine occupational requirements. This may include a signed worker authority (see related documents) or provision of required information to an agreed workplace support person/line manager. Seeking information to assist a person to remain safe in the workplace helps to fulfill a duty of care for workers and others in the workplace.

To assess an adjustment request, line managers (or a relevant internal support person) should ask about the employee's experience at work or how their condition impacts their ability to perform their role. An employee's lived experience (including their cultural, religious and spiritual considerations) is recognised in consideration of reasonable adjustment and appropriate consultation with the employee must occur. Employees may need to provide medical evidence to support provision of reasonable adjustment/s.

Employees and prospective employees only need to share information about their disability, injury or medical condition, circumstance or neurodivergence if it is likely to affect:

- their ability to meet a genuine occupational requirement of the role, and/or
- their own safety or the safety of others in the workplace.

If any of these apply, they may only be required to inform their manager of:

- the functional impacts of their condition on their work or on how their work is affecting their condition, and/or
- what assistance they need, without requiring the disclosure of a diagnosis.

It is important that the purpose of seeking information about a person's ability in the workplace is clear and made in a reasonable manner. Disclosure of personal information is an individual decision, and the *Human Rights Act 2019* affords the right to protection from discrimination.

When the line manager is satisfied sufficient information is available to make an informed decision about the adjustments that are required, the delegate may support implementation of these adjustments, where reasonably practicable. Details should be appropriately documented.

It is important to regularly re-visit adjustments to consider efficacy, risks, impacts, and changing circumstances and the need for additional supports. Where further information is necessary, a reasonable adjustment assessment can be requested.

7 Confidentiality

Managers and employees must respect that all individuals have a right to confidentiality and privacy. Personal information about an individual may not be shared without that person's written consent.

8 Grievance and dispute resolution

Where an employee is dissatisfied with the reasonable adjustment request, actions and/or decision, they may lodge an individual grievance in accordance with *Individual employee grievances HR Policy E12*.

An employee may also lodge a complaint with the Queensland Human Rights Commission.

Legislative or other authority

- Anti-Discrimination Act 1991
- Disability Discrimination Act 1992 (Cth)
- Information Privacy Act 2009
- Human Rights Act 2019
- Public Sector Act 2022
- Managing the risks of psychosocial hazards at work code of practice 2022
- Work Health and Safety Act 2011
- Workers' Compensation and Rehabilitation Act 2003

Related policy or documents

- Anti-discrimination, human rights and vilification HR Policy E2 (QH-POL-101)
- Code of Conduct for the Queensland public service
- Independent medical examinations of employees HR policy E11 (QH-POL-170)
- Individual Employee Grievance HR Policy E12 (QH-POL-104)
- Health safety and wellbeing HR Policy W1 (QH-POL-401)
- Diversity and inclusion HR Policy G2 (QH-POL-132)
- Workplace Rehabilitation Standard (QH-IMP-401-5)
- Payment of salary, wages and payroll deductions HR Policy C13 (QH-POL-188)
- Worker Authorisation
- Workplace adjustments for government employees (<https://www.forgov.qld.gov.au/pay-benefits-and-policy/health-safety-and-wellbeing/workplace-adjustments>)
- Job Access (<https://www.jobaccess.gov.au/>)

Delegation

The delegate is as listed in the relevant Department of Health Human Resource (HR) Delegations Manual, or Hospital and Health Services Human Resource (HR) Delegations Manual, as amended from time to time.

Definitions

Term	Definition
Genuine occupational requirement	An essential component (or inherent requirement) of the work that must be performed - that is, tasks or skills that are a major part of the role, that cannot be re-allocated or completed differently and have significant consequences if not performed. To determine if someone would be able to carry out such requirements, employers should consider factors such as the person's relevant past training, qualifications, and experience, whether they already work for them and their performance in working for them, and any other relevant factor.
Health condition	A term that refers to a state of illness or disease that can be measured through various methods, such as diagnosis by a healthcare provider, symptomatology, medication use and impact on a person's ability to function

Term	Definition
Injury/illness (work-related)	A personal injury arising out of, or in the course of, employment if: 1. The employment is a significant contributing factor to the injury. 2. Despite subsection (1) injury does not include a psychiatric or psychological disorder arising out of, or in the course of, any of the following circumstances: – Reasonable management action taken in a reasonable way by the employer in connection with the worker's employment. – The worker's expectation or perception of reasonable. – Management action being taken against the worker. – Action by the Regulator or an insurer in connection with the worker's application for compensation. (The above definition is utilised by WorkCover Queensland when determining liability / eligibility for workers' compensation entitlements).
Injury/illness (non-work-related)	All other injuries or illnesses which do not meet the definition of work-related injury / illness.
Maximum medical improvement	Maximum medical improvement occurs when an injured person reaches a state where their condition cannot be improved further or their healing process reaches a treatment plateau
Reasonable adjustment	Where adjustments are made to a position, an employment practice, the workplace or work-related environment to ensure equal opportunity for people with a medical condition or disability to perform the genuine occupational requirements of the position without imposing unjustifiable hardship on the organisation.
Suitable duties	In relation to a worker, are work duties for which the worker is suited, having regard to the following matters: • legislative obligations • the nature of the worker's incapacity and pre-injury employment • relevant medical information • the rehabilitation and return to work plan for the worker • the provisions of the employer's workplace rehabilitation policy and procedures • the worker's age, education, skills and work experience • if duties are available at a location (the other location) other than the location in which the worker was injured/made ill, whether it is reasonable to expect the workers to attend the other location, and • any other relevant matters.

Term	Definition
Unjustifiable Hardship	The <i>Anti-Discrimination Act 1991</i> indicates the issue of whether the supply of special services or facilities would impose “unjustifiable hardship” on an employer depends on all the relevant circumstances of the case, including the: • nature of the special services or facilities • cost of supplying the special services or facilities and the number of people who would benefit or be disadvantaged • financial circumstances of the employer • disruption that supplying the special services or facilities might cause • nature of any benefit or detriment to all people concerned. Whether there is unjustifiable hardship depends on the circumstances of the particular case. What might be unjustifiable hardship for one employer or workplace might not necessarily be unjustifiable hardship for another.

History

Date	Policy change
7 January 2026	Policy: • updated policy and legislation references • included reference to PSC workplace adjustment guidance on forgov • inclusion of statement regarding local responsibilities • inclusion of new sections 1.1 and 1.2 Temporary and Permanent reasonable adjustment • inclusion of reference to disclosure and consultation • reference to permanent reasonable adjustment requiring HR oversight • inclusion of new sections 4; Obligations and responsibilities and 56; Evidence and determining adjustments • add reference to Managing the risk of psychosocial hazards at work Code of Practice 2022 • expand advice on cost of reasonable adjustment. Expanded on attachment 1: examples.
July 2020	Policy: • amended to update references and naming conventions • application amended as a result of changes outlined in the Hospital and Health Boards (Changes to Prescribed Services) Amendment Regulation 2019.

Date	Policy change
January 2014	• Policy formatted as part of the HR Policy Simplification project. • Policy amended to: – limit application to employees working in and for the Department of Health – remove grievance and dispute resolutions sections that are already contained in the Employee Complaints HR Policy E12 – identify the party that is required to pay the costs of the reasonable adjustment – update definition section to remove definitions for “reasonable adjustment” and include definition for “vicarious liability” – update references and naming conventions.
July 2008	Amended to reflect the Public Service Act 2008.
April 2008	Developed as a result of the HR Policy Consolidation Project.

Attachment 1 – Reasonable adjustment examples

Examples of reasonable adjustment in respective circumstances may include, but are not limited to:

- **Recruitment and selection:** (of potential and existing employees): Providing assistance to facilitate the interviewing process, e.g. wheelchair access, sign language interpreter.
- **Training and career advancement:** Providing training information in alternative formats, and making adjustments to allow opportunities to act in other positions.
- **Workplace design:** providing access to the workplace, and the provision of specialist equipment where required and reasonable to do so, to allow the person to undertake the duties of the position, e.g. larger screens/font for people with low vision.
- **Workplace supports:** coordinated buddy system, additional supervision, roster adjustments.
- **Job design:** changes to how work is done, including role requirements, job demands and resources provided.
- **Temporary disability:** providing a return to work or workplace rehabilitation program e.g. provision of equipment for the elevation of an injured ankle - refer to the Workplace Rehabilitation Standard and Guidelines.
- **Deployment/redeployment:** relocating an employee from one work environment to another.

Each situation should be assessed on a case-by-case basis. During a reasonable adjustment process, employees should be treated with dignity and respect and allocated duties which are meaningful, commensurate with their classification, experience and abilities.

The Public Sector Commission offers resources to support workplace adjustments for government employees on their web pages. Adjustments across the employee lifecycle may. Include (but is not limited to):

- accessible content and communications
- assistive technology, such as voice-activated software, an amplified phone, or a digital recorder
- car parking or travel arrangements for any work-related travel where possible
- changes to how information is received, such as in writing and verbally
- changes to ways of working or how tasks are done
- disability awareness and confidence training for co-workers and managers
- equipment or furniture that lets the employee work in a safe manner
- flexible working arrangements
- inclusive meetings, such as having an agenda and sending accessible materials in advance
- job redesign, such as job sharing or re-assigning tasks to others
- more supervision or a different style of supervision, or clear deadlines for tasks
- using a person's preferred communication device, such as a communication board, tablet or mobile phone

- using a person's preferred way to communicate, such as an Auslan interpreter, the National Relay Service, live captions or a larger font size.

Non-physical adjustments

Non-physical adjustments are adjustments that do not require a change to the physical environment in which the employee works. These are adjustments to the way in which the employee works. [Flexible working arrangements](#) provide options, such as:

- flexible start and finish times
- compressed hours
- working from home
- working part-time.

Different ways of working may look like:

- alternate methods of communication (e.g. written instead of verbal)
- using headphones to cancel noise
- more time for certain tasks
- working in a quiet room when needed
- additional or frequent breaks
- restricted manual tasks.

Physical adjustments

Physical adjustments include a change to the physical environment in which the employee works. This may be physical changes to the workstation or work area, or the work environment. This could include:

- a specific chair
- larger monitors and keyboards
- braille keyboard
- phone for people who are blind or have low vision
- ergonomic mouse and keyboard
- interpreter
- sit to stand desk
- lighting changes
- work area re-configuration.

Software adjustments

Software adjustments are changes or upgrades to the device employees use when working, such as:

- fusion - program for vision impaired providing ZoomText and JAWS
- screen reading software such as JAWS

- NVDA (NonVisual Desktop Access) software – open access software which enables people who are blind or have low vision to access and interact with the Windows operating system
- screen magnification software and/or text readers
- speech input software and/or text writing help software or subscriptions.

For information about what to consider when making a decision about what may be reasonable, see the 'Practical Considerations for Implementation'.